

SENATE BILL 376

By Rose

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 7, relative to institutions of higher
education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 7, Part 1, is amended by
adding the following as a new section:

49-7-190.

(a) As used in this section, "institution":

(1) Means a four-year public or private institution of higher education
located in this state; and

(2) Does not include an institution of higher education governed by the
board of regents of the state university and community college system.

(b) A person must not be excluded from participating in, being denied the
benefits of, or being subjected to discrimination by an institution, or any program or
activity at an institution, including affirmative action, on the basis of race, color, ethnicity,
or national origin.

(c) An institution, or any officer, employee, or agent of such institution, shall not
act in furtherance of, or facilitate any decision based on, race, color, or ethnicity that
causes a person to be excluded from participating in, being denied the benefit of, or
being subjected to discrimination by the institution, or any program or activity at the
institution, as prohibited under this section.

(d) An institution shall not use an applicant's race, color, ethnicity, or national
origin in determining whether the applicant qualifies for admission into the institution, or

for scholarships or financial aid at the institution. The use of aggregated data concerning the race, color, ethnicity, or national origin of such applicants or students in making such determinations is prohibited.

(e)

(1) An institution shall not reveal or make known to any admissions or financial aid officers data concerning the race, color, or ethnicity of any applicant or student before admissions and financial aid, scholarship, and funding decisions about the applicant or student are made.

(2) An admissions or financial aid officer shall not intentionally acquire such data described in subdivision (e)(1) by alternative means before admissions or financial aid, scholarship, and funding decisions about the applicant or student are made.

(f) There is established a private cause of action against an institution that violates this section.

(g) There is established a private cause of action against any officer, employee, or agent of an institution for violating this section. However, if such officer, employee, or agent can establish by clear and convincing evidence that they acted at the direction of the institution, or any superior officer, employee, or agent thereof, then the cause of action shall lie against the institution, the officer, the employee, the agent, or a combination of such parties.

(h)

(1) A plaintiff may seek to recover the following damages for a violation of this section:

(A) Actual or compensatory damages sustained by the plaintiff;

and

(B) Punitive damages, if the plaintiff demonstrates that the institution or other parties discriminated against the person intentionally or with reckless indifference to the protected rights of the plaintiff.

(2) The plaintiff must prove damages by a preponderance of the evidence.

(i) In an award of damages resulting from an action brought by a plaintiff under this section, the defendant is strictly liable to the plaintiff for a minimum of four thousand dollars (\$4,000) in statutory damages, independent of any actual or compensatory damages sustained by the plaintiff resulting from a violation of this section.

(j) In an action brought under this section:

(1) The plaintiff may seek injunctive and declaratory relief; and

(2) The state waives sovereign immunity.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.